

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
NYA THEOPHILE,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
P.O. NATALY SAMPEDRO, and
P.O. TASHEA N. SIMSGABY,

Defendants.

Index No.:

Date purchased: 5/29/24

Plaintiff designates
KINGS County
as the place of Trial.**SUMMONS**The basis of the venue is
Place of Occurrence:
KINGS COUNTY, NEW YORK-----X
To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
May 29, 2024Adam Hill, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
45 Broadway, Suite 1110
New York, New York 10006
718-855-2324

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.:
NYA THEOPHILE,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
P.O. NATALY SAMPEDRO, and
P.O. TASHEA N. SIMSGABY,

Defendants.

-----X

Plaintiff herein, by her attorneys, Ross and Hill, Esqs., complaining of the above-named defendants, respectfully shows to the Court and allege the following upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, City and the State of New York.

2. At all times hereinafter mentioned, defendant **THE CITY OF NEW YORK** was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, defendant **NEW YORK CITY POLICE DEPARTMENT** is an agency acting on behalf of The City of New York and engaged by The City of New York to perform, *inter alia*, law enforcement, public safety, and emergency response, for the residents of The City of New York.

4. At all times hereinafter mentioned, defendant **THE CITY OF NEW YORK**, its

agents, servants and employees operated, maintained and controlled the **NEW YORK CITY POLICE DEPARTMENT** including all the Police Officers thereof.

5. At all times hereinafter mentioned, defendant P.O. NATALY SAMPEDRO, Shield No.: 26822, was a resident of the State of New York.

6. At all times hereinafter mentioned, defendant P.O. TASHEA N. SIMSGABY, Shield No: 25749, was a resident of the State of New York.

7. At all times hereinafter mentioned, defendants P.O. NATALY SAMPEDRO, Shield No.: 26822, and P.O. TASHEA N. SIMSGABY, Shield No: 25749 (hereinafter collectively "Police Officers") were Police Officers employed by the New York City Police Department and at all times herein mentioned was acting in the scope of their employment as a Police Officers.

8. On or about September 29, 2023, plaintiff's Notice of Claim was made and served upon the defendants, said service occurring within ninety (90) days of the incident giving rise to this lawsuit.

9. That more than thirty (30) days have elapsed since the service of said Notice and adjustment or payment of plaintiff's claim has been neglected or refused.

10. That this action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.

11. That on August 18, 2023, at approximately 9:00 p.m., plaintiff was a lawfully in the vicinity of Ditmas Avenue and Avenue D, Brooklyn, New York.

12. That at said time, Police Officers, without consent or cause, unlawfully stopped plaintiff.

13. That at said time, Police Officers, without consent or cause, unlawfully detained plaintiff.

14. That at said time, Police Officers unlawfully placed handcuffs on plaintiff.

15. That at said time, plaintiff was unlawfully detained.

16. That the Police Officers, without reasonable or probable cause, falsely arrested plaintiff.

17. That the arrest of plaintiff constituted false arrest.

18. The incident as described above, resulted from the negligence of the defendants, their agents, servants, and/or employees, with no negligence on the part of the plaintiff contributing thereto.

19. That the Police Officers acted intentionally, maliciously, wantonly, and with deliberate disregard for plaintiff's rights and interests.

20. The false arrest of plaintiff by defendants, their agents, servants, and/or employees, caused plaintiff pain, suffering, humiliation, and personal injury.

21. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A SECOND CAUSE OF ACTION

22. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-21 hereof with the same force and effect as though fully set forth herein at length.

23. That plaintiff was taken to the NYPD 69th precinct.

24. The unlawful imprisonment of plaintiff was without any cause or justification.

25. The incident as aforescribed resulted from the negligence of the defendants, their agents, servants, and/or employees, with no negligence on the part of the plaintiff contributing thereto.

26. That the Police Officers acted intentionally, maliciously, wantonly, and with deliberate disregard for plaintiff's interests.

27. The unlawful detention of plaintiff by the defendants, their agents, servants, and/or employees, caused plaintiff pain, humiliation, and personal injury.

28. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A THIRD CAUSE OF ACTION

29. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-21 and 22-28 hereof with the same force and effect as though fully set forth herein at length.

30. That the unlawful detainment, arrest, and imprisonment constituted false imprisonment.

31. That plaintiff was fingerprinted.

32. That plaintiff was photographed.

33. That plaintiff was placed in a cell.

34. That plaintiff was transferred to Central Booking.

35. That plaintiff was released from police custody on August 19, 2023, approximately 9:00 p.m.

36. That no criminal charges were filed against plaintiff.

37. That the incident as aforescribed resulted from the negligence of the defendants, their agents, servants, and/or employees, with no negligence on the part of the plaintiff contributing thereto.

38. That plaintiff sustained an eye injury as a result of the false imprisonment.

39. That the false imprisonment was a proximate cause of the plaintiff's injuries.

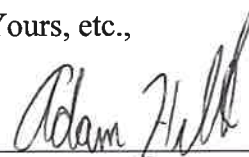
40. That the Police Officers acted intentionally, maliciously, wantonly, and with deliberate disregard for plaintiff's interests.

41. The false imprisonment of plaintiff by defendants, its agents, servants and/or employees, caused plaintiff pain, humiliation, and personal injuries.

42. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court.

WHEREFORE, plaintiff demands judgment against the defendants on all causes of action in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Yours, etc.,



Adam Hill, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
45 Broadway, Suite 1110
New York, New York 10006
718-855-2324

ATTORNEY VERIFICATION

STATE OF NEW YORK, COUNTY OF NEW YORK) s.s.:

Pursuant to CPLR § 2106, I affirm this 29th day of May 2024, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.

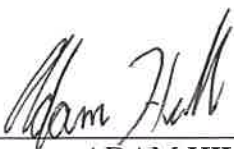
I, the undersigned, an attorney duly admitted to practice law in the Courts of this State, state that I am an associate at the firm of Ross and Hill, Esqs., attorneys of record for plaintiff in this action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief and, as to those matters, I believe it to be true.

The reason this verification is made by me and not by the plaintiff is that plaintiff is presently outside the County in which your affirmant maintains offices.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: consultation with plaintiff, investigative reports, memoranda and other data in the file concerning the subject matter of the within litigation.

I affirm the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
May 29, 2024


ADAM HILL

Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

NYA THEOPHILE,

Plaintiff,

-against-

**THE CITY OF NEW YORK , NEW YORK CITY POLICE DEPARTMENT,
P.O. NATALY SAMPEDRO, and
P.O. TASHEA N. SIMSGABY,**

Defendants.

SUMMONS & VERIFIED COMPLAINT

**ROSS AND HILL, ESQS.
Attorneys for Plaintiff
Office and Post Office Address
45 Broadway, Suite 1110
New York, New York 10006
Tel (718) 855-2324
Fax (718) 855-4617**

**To: Service of a copy of the within
is hereby admitted.**

Dated:

Attorney(s) for
